

An Act

ENROLLED SENATE
BILL NO. 1433

By: Bergstrom and Jett of the
Senate

and

Hall of the House

An Act relating to the Administrative Procedures Act; creating the Guidance Transparency Act; providing short title; amending 75 O.S. 2021, Section 250.3, as last amended by Section 5, Chapter 258, O.S.L. 2025 (75 O.S. Supp. 2025, Section 250.3), which relates to defined terms under the Administrative Procedures Act; defining term; conforming language; amending 75 O.S. 2021, Section 250.4a, which relates to certain exemption under the Administrative Procedures Act; requiring certain agencies to make guidance documents available for public inspection; amending 75 O.S. 2021, Section 250.9, as amended by Section 1, Chapter 7, O.S.L. 2024 (75 O.S. Supp. 2025, Section 250.9), which relates to creation of the Office of Administrative Rules; requiring certain agencies to electronically submit certain guidance documents on certain basis; requiring publication of documents in certain form; requiring documents to include certain information; amending 75 O.S. 2021, Section 302, which relates to duties of rulemaking agencies; requiring agencies to make all guidance documents available for public inspection; updating statutory language; providing for noncodification; and providing an effective date.

SUBJECT: Administrative Procedures Act

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Guidance Transparency Act".

SECTION 2. AMENDATORY 75 O.S. 2021, Section 250.3, as last amended by Section 5, Chapter 258, O.S.L. 2025 (75 O.S. Supp. 2025, Section 250.3), is amended to read as follows:

Section 250.3. As used in the Administrative Procedures Act:

1. "Administrative head" means an official or agency body responsible pursuant to law for issuing final agency orders;

2. "Adopted" means a proposed emergency rule which has been approved by the agency but has not been approved or disapproved by the Governor as an emergency rule as provided by Section 253 of this title, or a proposed permanent rule which has been approved by the agency and not disapproved by the Governor pursuant to paragraph 6 of subsection A of Section 303 of this title, but has not been finally approved or disapproved by the Legislature or the Governor;

3. "Agency" includes, but is not limited to, any constitutionally or statutorily created state agency, board, bureau, commission, office, authority, institution, public trust in which the state is a beneficiary, interstate commission, or any instrumentality thereof, except:

- a. the Legislature or any branch, committee, or officer thereof, and
- b. the courts;

4. "Emergency rule" means a rule that is made pursuant to Section 253 of this title;

5. "Final rule" or "finally adopted rule" means a rule other than an emergency rule, which has not been published pursuant to Section 255 of this title but is otherwise in compliance with the requirements of the Administrative Procedures Act, and is:

- a. ~~approved by the Legislature pursuant to Section 308.3 of this title, provided that any such joint resolution becomes law in accordance with Section 11 of Article VI of the Oklahoma Constitution,~~
- b. ~~approved by the Governor pursuant to subsection C of Section 308.3 of this title,~~
- e. approved by a joint resolution pursuant to subsection B of Section 308 of this title, provided that any such resolution becomes law in accordance with Section 11 of Article VI of the Oklahoma Constitution, or
- d. b. disapproved by a joint resolution pursuant to subsection B of Section 308 of this title ~~or Section 308.3 of this title,~~ which has been vetoed by the Governor in accordance with Section 11 of Article VI of the Oklahoma Constitution and the veto has not been overridden;

6. "Final agency order" means an order that includes findings of fact and conclusions of law pursuant to Section 312 of this title, is dispositive of an individual proceeding unless there is a request for rehearing, reopening, or reconsideration pursuant to Section 317 of this title, and which is subject to judicial review;

7. "Guidance document" means:

- a. (1) an agency statement of general applicability that is not a major rule or a nonmajor rule and is designated by an agency official or employee as setting forth an authoritative or official policy or interpretation on a statutory, regulatory, or technical issue. A guidance document may include, but not be limited to, a memorandum, notice, bulletin, directive, letter, or no-action letter, or
- (2) a federal agency statement of general applicability that is designated by an agency official or employee as setting forth an authoritative or official policy or

interpretation on a statutory, regulatory, or technical issue. A guidance document may include, but is not limited to, a memorandum, notice, bulletin, directive, letter, or no-action letter.

b. The term guidance document shall be construed broadly to effectuate the purpose and intent of the Administrative Procedures Act and includes any authoritative or official statement or position whether designated by the agency as binding or nonbinding but shall not include:

(1) correspondence related to agency organization, procedure, or practice,

(2) agency adjudications decided under state or federal law,

(3) internal agency correspondence not intended to have a substantial future effect on the behavior of regulated parties, or

(4) internal executive branch legal advice or legal opinions addressed to executive branch officials;

8. "Hearing examiner" means a person meeting the qualifications specified by Article II of the Administrative Procedures Act and who has been duly appointed by an agency to hold hearings and, as required, render orders or proposed orders;

~~8.~~ 9. "Implementation and compliance costs" means direct costs that are readily ascertainable based upon standard business practices, including, but not limited to, fees, the cost to obtain a license or registration, the cost of equipment required to be installed or used, additional operating costs incurred, the cost of monitoring and reporting, and any other costs to comply with the requirements of the proposed rule;

~~9.~~ 10. "Individual proceeding" means the formal process employed by an agency having jurisdiction by law to resolve issues

of law or fact between parties and which results in the exercise of discretion of a judicial nature;

~~10.~~ 11. "License" includes the whole or part of any agency permit, certificate, approval, registration, charter, or similar form of permission required by law;

~~11.~~ 12. "Major rule" means any administrative rule, whether emergency or permanent in nature, that will result in or is likely to result in One Million Dollars (\$1,000,000.00) or more over the initial five-year period in implementation and compliance costs that are reasonably expected to be incurred by or passed along to businesses, state or local government units, and individuals as a result of the proposed rule following the promulgation of such rule;

~~12.~~ 13. "Nonmajor rule" means any rule that is not a major rule;

~~13.~~ 14. "Office" means the Office of the Secretary of State;

~~14.~~ 15. "Order" means all or part of a formal or official decision made by an agency including, but not limited to, final agency orders;

~~15.~~ 16. "Party" means a person or agency named and participating, or properly seeking and entitled by law to participate, in an individual proceeding;

~~16.~~ 17. "Permanent rule" means a rule that is made pursuant to Section 303 of this title;

~~17.~~ 18. "Person" means any individual, partnership, corporation, association, governmental subdivision, or public or private organization of any character other than an agency;

~~18.~~ 19. "Political subdivision" means a county, city, incorporated town, or school district within this state;

~~19.~~ 20. "Promulgated" means a finally adopted rule which has been filed and published in accordance with the provisions of the Administrative Procedures Act, or an emergency rule or preemptive rule which has been approved by the Governor;

~~20.~~ 21. "Rule" means any agency statement or group of related statements of general applicability and future effect that implements, interprets, or prescribes law or policy, or describes the procedure or practice requirements of the agency. The term rule includes the amendment or revocation of an effective rule but does not include:

- a. the issuance, renewal, denial, suspension or revocation or other sanction of an individual specific license,
- b. the approval, disapproval, or prescription of rates. For purposes of this subparagraph, the term "rates" shall not include fees or charges fixed by an agency for services provided by that agency including, but not limited to, fees charged for licensing, permitting, inspections, or publications,
- c. statements and memoranda concerning only the internal management of an agency and not affecting private rights or procedures available to the public,
- d. declaratory rulings issued pursuant to Section 307 of this title,
- e. orders by an agency, or
- f. press releases or "agency news releases", provided such releases are not for the purpose of interpreting, implementing, or prescribing law or agency policy;

~~21.~~ 22. "Rulemaking" means the process employed by an agency for the formulation of a rule;

~~22.~~ 23. "Secretary" means the Secretary of State; and

~~23.~~ 24. "Small business" means a for-profit enterprise consisting of fifty or fewer full-time or part-time employees; ~~and~~

~~24.~~ ~~"Technical legal defect" means an error that would otherwise invalidate an action by a court of law.~~

SECTION 3. AMENDATORY 75 O.S. 2021, Section 250.4a, is amended to read as follows:

Section 250.4a. Any agency exempt from all or part of the Administrative Procedures Act pursuant to subsection A of Section 250.4 of this title shall maintain and make available for public inspection its exempt rules and all guidance documents at its principal place of business and on any website associated with the agency.

SECTION 4. AMENDATORY 75 O.S. 2021, Section 250.9, as amended by Section 1, Chapter 7, O.S.L. 2024 (75 O.S. Supp. 2025, Section 250.9), is amended to read as follows:

Section 250.9. A. There is hereby established an Office of Administrative Rules within the Office of the Secretary of State. The Office of Administrative Rules shall have the primary responsibility for publishing "The Oklahoma Register" and the "Oklahoma Administrative Code" and otherwise implementing the provisions of Article I of the Administrative Procedures Act. The Secretary of State shall provide for the adequate staffing of the Office to implement the provisions of this section including but not limited to an editor in chief.

B. The Secretary shall cause to be published in electronic form, and may cause to be published in printed form, at the least cost possible to the state, the "Oklahoma Administrative Code" and "The Oklahoma Register". In the event of any discrepancy between the electronic and printed form of the Code or "The Oklahoma Register", the electronic form shall prevail unless it is conclusively shown, by reference to the rulemaking filings made with the Secretary, that the electronic form contains an error in publication.

C. Each agency subject to the provisions of Article I and Article II of the Administrative Procedures Act shall electronically submit all guidance documents to the Secretary on a quarterly basis. The Secretary shall publish the guidance documents in an electronic, indexed, searchable form. The published guidance documents shall include the following:

1. A notification that the guidance documents lack the full force and effect of law, except as authorized by law or as incorporated into a contract or binding legal decision; and

2. Information regarding amendments to or rescission of guidance documents by an agency or federal agency. An original guidance document shall remain on the website for the Office of Administrative Rules, and within fifteen days of an amendment or rescission, the agency shall submit to the Secretary a notice that the document has been amended or rescinded, the date of such action, the reason for the amendment or rescission, and any amended guidance document. The notice shall be published within fifteen (15) days of receipt by the Secretary.

SECTION 5. AMENDATORY 75 O.S. 2021, Section 302, is amended to read as follows:

Section 302. A. In addition to other rulemaking requirements imposed by law, each agency which has rulemaking authority, shall:

1. Promulgate as a rule a description of the organization of the agency, stating the general course and method of the operations of the agency and the methods whereby the public may obtain information or make submissions or requests;

2. Promulgate rules of practice setting forth the nature and requirements of all formal and informal procedures available, including a description of all forms and instructions issued by the agency for use by the public;

3. Make available for public inspection all rules, all guidance documents, and all other written statements of policy or interpretations formulated, adopted, promulgated, or used by the agency in the discharge of its functions; and

4. Make available for public inspection pursuant to the provisions of the Oklahoma Open Records Act all final orders, decisions, and opinions.

B. 1. An agency shall maintain an official rulemaking record for each proposed rule or promulgated rule. The record and

materials incorporated by reference shall be available for public inspection.

2. The agency rulemaking record shall contain:

- a. copies of all publications in "The Oklahoma Register" with respect to the rule or the proceeding upon which the rule is based,
- b. copies of any portions of the agency's public rulemaking docket containing entries relating to the rule or the proceeding upon which the rule is based,
- c. all written petitions, requests, submissions, and comments received by the agency and all other written materials considered by the agency in connection with the formulation, proposal, or adoption of the rule or the proceeding upon which the rule is based,
- d. any official transcript of oral presentations made in the proceeding upon which the rule is based or, if not transcribed, any tape recording or stenographic record of those presentations, and any memorandum prepared by a presiding official summarizing the contents of those presentations,
- e. a copy of any regulatory analysis prepared for the proceeding upon which the rule is based,
- f. a copy of the rule and analysis of each such rule filed with the Office pursuant to Section 251 of this title,
- g. all petitions for exceptions to, amendments of, or repeal or suspension of, the rule,
- h. a copy of the rule impact statement, if made, and
- i. such other information concerning such rules as may be determined necessary by the agency.

3. Upon judicial review, the record required by this section constitutes the official agency rulemaking record with respect to a rule. Except as otherwise required by a provision of law, the agency rulemaking record need not constitute the exclusive basis for agency action on that rule or for judicial review thereof.

C. 1. By December 31, 2002, each agency that issues precedent-setting orders shall maintain and index all such orders that the agency intends to rely upon as precedent. The index and the orders shall be available for public inspection and copying in the main office and each regional or district office of the agency. The orders shall be indexed by subject.

2. After December 31, 2002, an order shall not be relied upon as precedent by an agency to the detriment of any person until it has been made available for public inspection and indexed in the manner described in this subsection.

3. An agency shall consistently apply rules to each person subject to the jurisdiction of the agency regarding issuance of orders.

D. An agency shall not by internal policy, memorandum, or other form of action not otherwise authorized by the Administrative Procedures Act:

1. Amend, interpret, implement, or repeal a statute or a rule;

2. Expand upon or limit a statute or a rule; and

3. Except as authorized by the United States Constitution ~~of the United States~~, the Oklahoma Constitution, or a statute, expand or limit a right guaranteed by the United States Constitution ~~of the United States~~, the Oklahoma Constitution, a statute, or a rule.

E. Any agency memorandum, internal policy, or other form of action violative of this section or the spirit thereof is null, void, and unenforceable.

F. This section shall not be construed to prohibit an agency issuing an opinion or administrative decision which is authorized by statute provided that, unless such opinion or administrative

decision is issued pursuant to the procedures required pursuant to the Administrative Procedures Act, such decision or opinion shall not have the force and effect of law.

SECTION 6. This act shall become effective November 1, 2026.

Passed the Senate the 17th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____